

TENTATIVE RULING

Case: **RoseBloom Associates, L.P. v. Olson**
Case No. CV2026-1584

Hearing Date: **June 26, 2026** **Department Two** **1:30 p.m.**

Defendant Tara Olson's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subds. (c) and (h), 453.)

Defendant's demurrer to plaintiff RoseBloom Associates, L.P.'s complaint is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) Based on the complaint and matters judicially noticeable, plaintiff is a covered housing provider under the Violence Against Women Act ("VAWA"). (34 U.S.C.A. § 12491, subds. (a)(3)(P); 24 C.F.R. § 5.2003; Complaint, ¶¶ 1 & 3; Defendant's RJN.) Therefore, plaintiff is required to plead in its complaint that it served defendant with the VAWA Notice of Occupancy Rights (form HUD-5380) along with the eviction notice attached to the complaint. (24 C.F.R. § 5.2005, subds. (a)(1), (a)(2)(iii); Complaint, ¶ 9(e), Exhibit 2.) The eviction notice attached to the complaint did not include the VAWA Notice of Occupancy Rights and "therefore, cannot support an action for unlawful detainer." (*DHI Cherry Glen Associates, L.P. v. Gutierrez*, (2019) 46 Cal.App.5th Supp. 1, 10.)

As the Court is sustaining with leave to amend defendant's demurrer, defendant's request to dismiss is **DENIED**. (Code Civ. Proc., § 581, subd. (f)(1).)

Plaintiff shall file an amended complaint no later than **July 1, 2026**. (Cal. Rules of Court, rule 3.1320, subd. (g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sunset Village v. McGinnis**
 Case No. CV2026-1607

Hearing Date: **June 26, 2026** **Department Two** **1:30 p.m.**

Parties are **DIRECTED TO APPEAR.**